

CV-25-012198 DIAZ, YOLANDA vs NATALE, ESTHER - Defendant's Motion for Attorneys' Fees and Costs Pursuant to Code of Civil Procedure 405.38 - GRANTED, in the reduced amount of \$4,217.32.

County: stanislaus

Division: Civil Law and Motion

Department: 23

Hearing date: 2012-04-02

Motion: The Court previously found Defendant to be the prevailing party entitled to recover fees and costs pursuant to Code Civ. Proc. § 405.38 and now exercises its discretion in determining what award is justified in this context. Attorney's Fees Hours Reasonably Worked – Regarding the lodestar fees calculation, the Court finds, on the basis of Counsel's declarations and supporting exhibits, including time records, and the Court's own review of the time entries submitted by defense counsel, as well as the Court's experience and general familiarity with the amount of time reasonably allocated to the types of tasks described herein, that the hours claimed were reasonably incurred and substantially contributed to the ultimate successful result. (Ketchum v. Moses (2001) 24 Cal.4th 1122, 1132; Horsford v. Board of Trustees of Calif. State University (2005) 132 Cal.App.4th 359, 394.) However, the Court determines that a portion of the time claimed by defense counsel herein should be reduced as follows: 2.55 billed by Colby Nicholes (CLN) on 1-27-26, 2-20-26 and 2-25-26, due to improper block billing that appears to combine recoverable and unrecoverable tasks and does not provide sufficient specificity for the Court to assess the reasonableness of the time incurred in relationship to the task(s) described. billed by Colby Nicholes (CLN) on 2-6-26, 2-10-26, and 4-28-26 that reflects unrelated or duplicative tasks. 0.7 billed by Luis Perez (LOP) on 2-10-26, reflecting excessive time and/or duplicative tasks. 0.9 billed by Sydney Scott (SKS) on 4-28-26 and 4-28-26, reflecting unrecoverable billing for interoffice communications and excessive/duplicative tasks. 0.65 billed by William Broderick Villa (WBV) on 2-20-26, due to improper block billing that appears to combine recoverable and unrecoverable tasks and does not provide sufficient specificity for the Court to assess the reasonableness of the time incurred in relationship to the task(s) described. 0.6 billed attributed to paralegal billing (MPH) on 5-4-26 and 5-7-26 for tasks duplicative of attorney work on the file. 2.4 attributed to paralegal billing (MPH) throughout the pendency of the matter, reflecting administrative and/or clerical tasks. In addition, the Court finds that the 5.0 hours claimed by Mr. Broderick Villa as "anticipated time" in connection with the instant motion appears excessive in this instance and should be reduced to 2.50 hours of recoverable time. In addition, the Court finds that such time should be awarded at the associate attorney rate of \$275 per hour and has added the allowable hours in this regard to Ms. Scott's total for lodestar purposes, below. Reasonable Hourly Rates – In its determination, the Court has considered the skill and experience of the timekeepers, the nature of the work performed, the customary billing rate for each timekeeper, and the prevailing rate for comparable legal services in the local community. (Serrano v Unruh (Serrano IV) (1982) 32 Cal.3d 621, 643; Serrano v Priest (Serrano III) (1977) 20 Cal.3d 25, 48.) The law further instructs that the relevant local community for the purpose of determining reasonable fees is the community where the action is pending. (Tidrick v. FCA US LLC (2025) 112 Cal.App.5th 1147.) Lastly, the law provides that the trial judge is "the best judge of the value of professional services rendered in his court." (Serrano III, supra, 20 Cal.3d at 49.) As a result, the Court finds that counsel's requested rates appear to generally reflect the prevailing rates in Stanislaus County for the billers described. Therefore, the hourly rates are approved in the amounts requested in the papers. Costs & Expenses The Court finds that Plaintiff is entitled to recover the costs and expenses incurred as set forth in the moving papers in the amount of \$488.82. Summary of Award – The Court's lodestar calculation and total award is as follows: Timekeeper Hours Hourly Rate Subtotal WBV 0.95 425 \$ 403.75 LOP 0.9 325 292.50 CLN 2.15 275 591.25 SKS 7.4 275 2,035.00 MPH 2.8 145 406.00 Total Fees 3,728.50 Costs 488.82 AWARD \$4,217.32

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Attorney's Fees

Hours Reasonably Worked –

Regarding the lodestar fees calculation, the Court finds, on the basis of Counsel's declarations and supporting exhibits, including time records, and the Court's own review of the time entries submitted by defense counsel, as well as the Court's experience and general familiarity with the amount of time reasonably allocated to the types of tasks described herein, that the hours claimed were reasonably incurred and substantially contributed to the ultimate successful result. (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1132; *Horsford v. Board of Trustees of Calif. State University* (2005) 132 Cal.App.4th 359, 394.) However, the Court determines that a portion of the time claimed by defense counsel herein should be reduced as follows:

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In addition, the Court finds that the 5.0 hours claimed by Mr. Broderick Villa as "anticipated time" in connection with the instant motion appears excessive in this instance and should be reduced to 2.50 hours of recoverable time. In addition, the Court finds that such time should be awarded at the associate attorney rate of \$275 per hour and has added the allowable hours in this regard to Ms. Scott's total for lodestar purposes, below.

Reasonable Hourly Rates –

In its determination, the Court has considered the skill and experience of the timekeepers, the nature of the work performed, the customary billing rate for each timekeeper, and the prevailing rate for comparable legal services in the local community. (*Serrano v Unruh* (Serrano IV) (1982) 32 Cal.3d 621, 643; *Serrano v Priest* (Serrano III) (1977) 20 Cal.3d 25, 48.) The law further instructs that the relevant local community for the purpose of determining reasonable fees is the community where the action is pending. (*Tidrick v. FCA US LLC* (2025) 112 Cal.App.5th 1147.) Lastly, the law provides that the trial judge is "the best judge of the value of professional services rendered in his court." (*Serrano III*, supra, 20 Cal.3d at 49.) As a result, the Court finds that counsel's requested rates appear to generally reflect the prevailing rates in Stanislaus County for the billers described. Therefore, the hourly rates are approved in the amounts requested in the papers.

Costs & Expenses

The Court finds that Plaintiff is entitled to recover the costs and expenses incurred as set forth in the moving papers in the amount of \$488.82.

Summary of Award –

The Court's lodestar calculation and total award is as follows:

Timekeeper

Hours

Hourly Rate

Subtotal

WBV

0.95

425

\$ 403.75

LOP

0.9

325

292.50

CLN

2.15

275

591.25

SKS

7.4

275

2,035.00

MPH

2.8

145

406.00

Total Fees

3,728.50

Costs

488.82

AWARD

\$4,217.32